

MUTUAL NON-DISCLOSURE AND CONFIDENTIALITY AGREEMENT

Jurisdiction: International, European Union (eIDAS Regulation EU No 910/2014) & State of Delaware, USA

PREAMBLE & PARTIES

This Mutual Non-Disclosure Agreement ("Agreement") is entered into and made effective as of the exact date and UTC timestamp recorded upon execution below by and between the Disclosing Party and the Receiving Party identified herein (collectively, the "Parties").

Disclosing Party Legal Entity	Acme Corporation
Receiving Party Legal Entity / Signer Name	
Signer Official Email Address	

1. DEFINITION OF CONFIDENTIAL INFORMATION

"Confidential Information" shall mean all information or material that has or could have commercial value or other utility in the business in which Disclosing Party is engaged. If Information is in written form, the Disclosing Party shall label or stamp the materials with the word "Confidential" or some similar warning. Confidential Information includes, without limitation, technical data, trade secrets, research, product plans, source code, software, algorithms, pricing, financial data, and business strategies.

2. OBLIGATIONS OF RECEIVING PARTY

Receiving Party shall hold and maintain the Confidential Information in strictest confidence for the sole and exclusive benefit of the Disclosing Party. Receiving Party shall carefully restrict access to Confidential Information to employees, contractors, and third parties as is reasonably required and shall require those persons to sign non-disclosure restrictions at least as protective as those in this Agreement. Receiving Party shall not, without prior written approval of Disclosing Party, use for Receiving Party's own benefit, publish, copy, or otherwise disclose to others, or permit the use by others for their benefit or to the detriment of Disclosing Party, any Confidential Information.

3. TERM & DURATION OF CONFIDENTIALITY

The non-disclosure obligations of this Agreement shall survive and remain binding upon the Receiving Party for a period of five (5) years from the execution timestamp recorded herein, or for as long as the Confidential Information remains a trade secret under applicable law, whichever is longer.

4. EUROPEAN & INTERNATIONAL ELECTRONIC SIGNATURE VALIDITY (eIDAS REGULATION)

The Parties explicitly acknowledge and agree that this Agreement is executed using an Advanced Electronic Signature (AdES) compliant with Regulation (EU) No 910/2014 of the European Parliament and of the Council (eIDAS Regulation), Article 25(1), which mandates that an electronic signature shall not be denied legal effect and admissibility as evidence in legal proceedings solely on the grounds that it is in an electronic form. Telemetry recorded includes SHA-256 field hashing, IP hashing, browser fingerprinting, and NTP server-verified timestamping stored in immutable Cloudflare D1 and R2 infrastructure.

5. GOVERNING LAW & JURISDICTION

This Agreement shall be governed by, construed, and enforced in accordance with the laws of the State of Delaware, USA, and applicable European Union directives for cross-border electronic agreements, without regard to conflict of law principles. Any legal suit, action, or proceeding arising out of or related to this Agreement shall be instituted in competent judicial courts.

6. SEVERABILITY & INTEGRATION

If any provision of this Agreement is held to be invalid or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid and enforceable, and the remaining provisions shall continue in full force and effect. This Agreement constitutes the entire understanding between the Parties relative to the subject matter hereof.

Signer Title / Corporate Capacity	
Date & Timestamp of Execution	

IN WITNESS WHEREOF, the Parties have executed this Mutual Non-Disclosure Agreement electronically as of the timestamp recorded below, agreeing that such electronic execution constitutes a legally binding Advanced Electronic Signature (AdES) pursuant to EU Regulation No 910/2014 (eIDAS), Article 25(1), the US ESIGN Act (15 U.S.C. § 7001 et seq.), UETA, and applicable national laws.

Execution UTC Timestamp	N/A
Signer Email	N/A
SHA-256 Cryptographic Audit Hash	N/A